DIVISION BENCH
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O-223

NATIONAL COMPANY LAW TRIBUNAL
KOLKATA BENCH
KOLKATA

C.P.(CAA)/960(KB)2019
IA(COMPANIES.ACT)/73(KB)2023

CORAM: 1. HON'BLE MEMBER(J), SHRI ROHIT KAPOOR.
2. HON'BLE MEMBER(T), SHRI BALRAJ JOSHI

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING ON 18TH SEPTEMBER, 2023, 10:30 A.M

IN THE MATTER OF	**ORISSA METALIKS PVT. LTD.**
UNDER SECTION	**SEC. 230-232, SEC 234**

Appearances (via video conferencing/physically)

Mr. Ratnanko Banerji, Sr. Adv. : For Applicant
Mr. Shaunak Mitra, Adv.
Mr. S. Sharma, Adv.
Mr. Shantanu Mitra, Adv.
Mr. Rishav Dutt, Adv.
Ms. Shalini Basu, Adv.

O R D E R

1. Ld. Sr. Counsel/Counsel for the applicant present.
2. **IA(COMPANIES.ACT)/73(KB)2023** On 21st August, 2023, Registry had sent notice to the State of Odisha through the Office of the Additional Chief Secretary to Government Steel & Mines Department for making representation on behalf of the respondent before this Tribunal in the subject matter. The service affidavit was served upon;
   a. Additional Chief Secretary to Government Steel & Mines Department, Government of Odisha, Bhubaneswar.
   b. Principal Secretary/Special Secretary, Department of Steel and Mines Department, Government of Odisha, Bhubaneswar.
   c. Office of the Advocate General, High Court of Orissa.
   d. Steel and Mines Department, Government of Odisha.
3. However, it is noticed that despite service of the notice aforesaid, there has been no representation. In view of the above, Registry is directed to issue notice by

speed post and e-mail to the Offices once again and also serve the copy of the notice to the Office of the Secretary (Law), Government of Orissa.

4. It is also pertinent to mention here that the subject matter of transfer of the railway siding is as per a scheme of demerger/arrangement sanctioned by this Tribunal *vide* order dated 1st October, 2019 in the Petition no. C.P. (AA)/960(KB)
5. In view of the above, the concerned are directed to appear before this Tribunal in person or through Authorized Representative on the next date of hearing, failing which appropriate orders shall be passed. Applicant is at liberty to serve a copy of this order *Dasti* to the respondents.
6. Post this matter on **19/10/2023**.

Balraj Joshi
Member (Technical)

Rohit Kapoor
Member (Judicial)

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